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In The
Supreme Court of the United States
October Term, 1996

STEINEY J. RICHARDS,

Petitioner,

v.

STATE OF WISCONSIN,

Respondent.

On Writ of Certiorari To The
Supreme Court Of The State of Wisconsin

BRIEF OF RESPONDENT

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QUESTIONS PRESENTED

1. Do the governmental interests promoted by the blanket (bright-line) rule reaffirmed in *State v. Richards*, 201 Wis. 2d 839, 549 N.W.2d 218 (1996), outweigh the individual interests protected by the rule of announcement so that the bright-line rule passes the Fourth Amendment test of reasonableness applied in *Maryland v. Wilson*, 65 U.S.L.W. 4124 (U.S. Feb. 19, 1997)?

2. Did the police have a particularized and objective basis for suspecting that further announcement would result in a threat to safety, the flight of the suspect or the destruction of evidence so that their entry into the defendant's room prior to announcing the purpose of the entry passes the Fourth Amendment test for reasonableness applied in *Ohio v. Robinette*, 117 S. Ct. 417 (1996)?

3. Was the police entry into the defendant's room prior to announcing the purpose of the entry reasonable because further announcement would have been a useless gesture once the defendant closed and locked the door after looking in the direction of a uniformed police officer?

4. If the police entry into the defendant's room was unreasonable under the Fourth Amendment, should the exclusionary rule be applied to prevent the state from introducing at trial the evidence seized in the execution of the search warrant?

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State v. Stevens,
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OTHER AUTHORITIES

D. Allegro, Note, *Police Tactics, Drug Trafficking and Gang Violence: Why the No-Knock Warrant Is an Idea Whose Time Has Come*, 64 Notre Dame L. Rev. 552 (1989) 19

Arrestees and Guns: Monitoring the Illegal Firearms Market, National Institute of Justice Research Preview, September 1995 17

Alfred Blumstein, *Youth Violence, Guns, and the Illicit-Drug Industry*, 86 J. Crim. L. & Criminology 10 (1995) 16-17

Michael H. Cottman, *2 Officers Shot in Gun Battle, Suspect Police Sought to Serve with Drug Warrant Wounded*, Miami Herald, July 26, 1984 14

Detroit Police Honors, Detroit Free Press, March 22, 1995 13

Marcida Dodson and Jerry Hicks, *Santa Ana Undercover Officer Shot in Face During Drug Bust*, Los Angeles Times, July 13, 1986 14

Joan Fleischman and Peter Hamm, *Machete-Armed Suspect Killed by Reserve Cop*, Miami Herald, Jan. 15, 1986 14

Illegal Firearms: Access and Use By Arrestees, National Institute of Justice Research in Brief, January 1997 17

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Patricia Klein and William Overend, *Lawyer Killed, Officer Hurt in Raid on Alleged Cocaine Ring*, L.A. Times, Feb. 27, 1987 14

Newsweek, *Arms Race on Hill Street*, Nov. 19, 1990 16-17

Newsweek, *Losing the War?*, March 14, 1988 18

Newsweek, *On the Firing Line*, May 29, 1989 18

Newsweek, *The Drug Gangs*, March 28, 1988 17

New York Times, *THE REGION - Q & A: New York's Drug Commander; Report From the Field On an Endless War*, March 12, 1989 18

Note, *Announcement in Police Entries*, 80 Yale L.J. 139 (1970) 11, 23

Ray Perez, *Suspect Killed, Officer Wounded in Shoot-Out*, Los Angeles Times, March 22, 1985 .. 14

Police Officer Shot While on Narcotics Case, Chicago Tribune, Sept. 29, 1994 13

Sonnenreich and Ebner, *No-Knock and Nonsense An Alleged Constitutional Problem*, 44 St. John's L. Rev. 626 (1970) 22

David A. Sylvester, *Fatal Shootout, Fire in Drug Raid, San Jose Officer Seriously Injured in 1-Hour Gunbattle*, San Francisco Chronicle, March 20, 1991 13-14

The Police Chief, *Drug Dealers' Sophisticated Weaponry Poses Continuing Threat*, March 1988 . 18

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The Police Chief, *Guns, Drugs and Violence, An Unholy Alliance*, by Benjamin Ward, Police Commissioner, New York City Police Department, New York, March 1988 18

Alice Thomas, *Drug Raids Becoming Riskier For Police*, The Columbus Dispatch, Jan. 19, 1996 ... 13

Pierre Thomas, *One Killed, Four Wounded in Va. Drug Raid*, The Wash. Post, Jan. 11, 1990 14

Time, *The Other Arms Race; America's Streets Become Free-Fire Zones as Police, Criminals and Terrified Citizens Wield More and Ever Deadlier Guns*, Feb. 6, 1989 18

U.S. Department of Justice, Uniform Crime Reports, Law Enforcement Officers Killed and Assaulted 15-16

Philip Watley and Henry Wood, *Vest Saves Officer in Drug Raid*, Chi. Trib., Nov. 1, 1986 14

No. 96-5955

In The

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BRIEF OF RESPONDENT

STATUTE INVOLVED

Wis. Stat. § 961.41(1) (1995-96). The provisions of this statute are set forth in the appendix to this brief.

STATEMENT OF FACTS

This Statement of Facts is provided to correct and supplement the "Statement of the Case" in the Petitioner's Brief.

The Petitioner's Brief at page 6 states that Detective Pharo was accompanied by an officer in "'full military uniform'" and two or three others in uniform.

That statement is inconsistent with the record. Detective Pharo testified that, when he was at the defendant's door, to his "right there were at least three police officers, one of which was in uniform. The other officers were in plain clothes" (J.A. 39). He also said that to his left were two more officers in plain clothes (J.A. 39). Thus, Detective Pharo testified that one, not three, of the officers was in uniform.

Pharo testified that the length of time from when the defendant opened the door to when he shut it after looking at Pharo and over Pharo's shoulder was maybe four to five seconds (J.A. 38-39).

The defendant testified that when he looked out the door he did not see anyone other than Detective Pharo (J.A. 47).

The trial court found that the defendant's testimony was self-serving and that it lacked some credibility (J.A. 54). The court said that the defendant's actions in jumping out the window would lead someone to believe that he did not want Pharo to come in, even if he was a maintenance man, because Pharo was accompanied by a uniformed police officer (J.A. 54).

SUMMARY OF ARGUMENT

In *Wilson v. Arkansas*, 115 S. Ct. 1914, 1915 (1995), this Court held that the "common-law 'knock and announce' principle forms a part of the reasonableness inquiry under the Fourth Amendment." The common law knock and announce principle recognized a law enforcement officer's authority to break open the doors of a dwelling, but generally indicated that he first ought to announce his presence and authority. *Id.*

In *State v. Richards*, 201 Wis. 2d 839, 549 N.W.2d 218 (1996), the Wisconsin Supreme Court reaffirmed a rule it had adopted prior to *Wilson v. Arkansas* and held that the police are not required to adhere to the rule of announcement whenever they execute a search warrant for felonious drug dealing.

The defendant contends that the bright-line rule reaffirmed in *Richards* cannot comply with the reasonableness inquiry under the Fourth Amendment because it does not look to the particular facts of each search to determine whether the entry into the residence was reasonable.

Contrary to the defendant's claim, the rule reaffirmed in *Richards* is reasonable under the Fourth Amendment. The legitimate governmental interests in police safety, crime detection and prevention and the prevention of flight by the suspect outweigh the occupant's interest in privacy and property rights. Therefore, the bright-line rule reaffirmed in *Richards* satisfies the Fourth Amendment reasonableness test applied in *Maryland v. Wilson*, 65 U.S.L.W. 4124 (U.S. Feb. 19, 1997).

The entry also satisfied the Fourth Amendment test applied in *Ohio v. Robinette*, 117 S. Ct. 417, 421 (1996), where the Court emphasized the fact-specific nature of the reasonableness inquiry. Balancing the same governmental and individual interests considered in evaluating the blanket rule demonstrates that the appropriate level of justification that must be satisfied to make an unannounced entry is the reasonable suspicion test rather than probable cause. In this case, the police had a warrant to search the defendant's room for evidence of drug dealing. Because of the recognized connection between drug dealing and guns and violence, when the police have probable cause to search a dwelling for evidence of drug dealing, they have reasonable suspicion to believe that their safety will be threatened if they announce their identity and

purpose before entering. Because of the ease with which narcotics can be destroyed, the police also have reasonable suspicion to believe that if they knock and announce prior to entering, the occupant will destroy, or attempt to destroy, the evidence before the police can enter. To minimize the risk to their safety and the risk of destruction of evidence, an unannounced entry by the police to execute a search warrant for evidence of drug dealing is reasonable.

Under the circumstances of this case, the entry was reasonable because, once the defendant closed the door after looking in the direction of the uniformed officer, the facts known to the police made it virtually certain that any further announcement would have been a useless gesture. By closing the door after looking in the direction of the uniformed officer, the defendant demonstrated that he knew why the men were at his door. Because any further announcement by the police would have been a useless gesture, immediate entry by the police was reasonable.

Finally, if the Court concludes that the police entry was unreasonable, the exclusionary rule should not be applied to render inadmissible the evidence seized in the execution of the search warrant. Because the evidence was seized under the authority of the valid search warrant and was not seized due to exploitation of illegality, the exclusionary rule should not apply.

ARGUMENT

I. IT WAS REASONABLE FOR THE POLICE TO FORCIBLY ENTER THE DEFENDANT'S ROOM BEFORE ANNOUNCING THEIR PURPOSE.

A. Pursuant to *Wilson v. Arkansas*, unannounced entries to execute search warrants are permissible when they are reasonable under the circumstances.

The police came to the defendant's room to execute a search warrant for evidence of possession of a controlled substance with intent to deliver (J.A. 8-10, 37-38). They knocked (J.A. 38). The defendant opened the door; but after looking in the direction of a uniformed officer, he closed the door and engaged the lock (J.A. 38-39). The police announced themselves as police officers and forced open the door (J.A. 39-40, 44-45). As the door was being opened, Detective Pharo heard one of the officers say "search warrant" (J.A. 66). As the door opened, Pharo heard glass breaking (J.A. 39). The defendant and his companion were jumping out the window (J.A. 47). After the defendant was through the window, an officer yelled, "'Police, freeze,'" and the defendant stopped (J.A.47).

The broad question in this case is whether it is reasonable for law enforcement officers to always have the authority to make an unannounced forcible entry to execute a search warrant for drug dealing, which the Wisconsin Supreme Court defined as a warrant to search for evidence of the crimes of delivery of a controlled substance or possession of a controlled substance with the intent to deliver. *Richards*, 201 Wis. 2d at 842 n.2, 549 N.W.2d at 219 n.2, and *State v. Stevens*, 181 Wis. 2d 410,

424-25, 511 N.W.2d 591, 595 (1994), *cert. denied*, 115 S. Ct. 2245 (1995).[1]

In the absence of the police always having authority to make an unannounced forcible entry to execute a search warrant for evidence of drug dealing, the more narrow question is whether under the circumstances of this case it was reasonable for the police to forcibly enter the hotel room before announcing their purpose.

In *Wilson v. Arkansas*, 115 S. Ct. at 1915, this Court held that the "common-law 'knock and announce' principle forms a part of the reasonableness inquiry under the Fourth Amendment." The common law knock and announce principle recognized a law enforcement officer's authority to break open the doors of a dwelling, but generally indicated that he first ought to announce his presence and authority. *Id.* The Court explained that, pursuant to its holding, "in some circumstances an officer's unannounced entry into a home might be unreasonable under the Fourth Amendment." *Id.* at 1918. The decision did not require that every entry must be preceded by an announcement because "[t]he Fourth Amendment's flexible requirement of reasonableness should not be read to mandate a rigid rule of announcement that ignores countervailing law enforcement interests." *Id.*

The Court explained that an unannounced entry would be reasonable where circumstances present a threat of physical violence, where the police seek a person who has escaped from them and retreated to his dwelling, and where the police have reason to believe that evidence would likely be destroyed if advance notice were given. *Wilson v. Arkansas*, 115 S. Ct. at 1919. The Court did not attempt to catalog all the situations where an

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[1]This Court denied the petition for certiorari in *Stevens v. Wisconsin*, 115 S. Ct. 2245 (1995), eight days after issuing the decision in *Wilson v. Arkansas*, 115 S. Ct. 1914 (1995).

unannounced entry would be reasonable; and it left to the lower courts the task of determining the circumstances under which an unannounced entry would be reasonable. *Id.* The Court explained that it was simply holding that

> although a search or seizure of a dwelling might be constitutionally defective if police officers enter without prior announcement, law enforcement interests may also establish the reasonableness of an unannounced entry.

Id.

In *Stevens* and *Richards*, the Wisconsin Supreme Court undertook the task of determining circumstances in which an unannounced entry is reasonable under the Fourth Amendment. Prior to the decision in *Wilson v. Arkansas*, the court held in *Stevens*, 181 Wis. 2d at 424-25, 511 N.W.2d at 595, that

> when the police have a search warrant, supported by probable cause, to search a residence for evidence of delivery of drugs or evidence of possession with intent to deliver drugs "evidence of drug dealing", they necessarily have reasonable cause to believe exigent circumstances exist. Thus, in all such searches the police are justified in dispensing with the rule of announcement and making a no-knock entry.

(Footnote omitted.)

In *Richards*, 201 Wis. 2d at 842, 549 N.W.2d at 219, the Wisconsin Supreme Court examined the continuing validity of the holding in *Stevens* in light of *Wilson v. Arkansas*; and the court reaffirmed *Stevens*, concluding "that police are not required to adhere to the rule of

announcement when executing a search warrant involving felonious drug delivery."[2]

The defendant contends that the holding in *Richards* cannot pass the reasonableness test under the Fourth Amendment because it does not examine the particular circumstances of each search.

Contrary to the defendant's claim, the decision in *Richards* passes the reasonableness test as that test is applied in *Maryland v. Wilson*, 65 U.S.L.W. 4124 (U.S. Feb. 19, 1997), and in *Ohio v. Robinette*, 117 S. Ct. 417 (1996).

Under the holding of *Richards*, the police entry in this case was reasonable because the police were executing a search warrant for evidence of drug dealing. In addition, under the particular circumstances of this case, the entry was reasonable because, once the defendant closed the door after looking in the direction of a uniformed police officer, any further announcement by the police would have been a useless gesture.

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[2]The Brief *Amicus Curiae* of the American Civil Liberties Union at pages 11 and 26 misstates the holding of *Richards* because it states that the holding applies to all search warrants for narcotics. The Wisconsin Supreme Court, however, explained that its holding applied only to warrants to search for evidence of delivery of a controlled substance or possession of a controlled substance with intent to deliver. *Richards*, 201 Wis. 2d at 842 and n.2, 549 N.W.2d at 219 and n.2.

B. Because the governmental interests in police safety and crime detection and prevention outweigh the individual's interests that are protected by the rule of announcement, the bright-line rule in *Richards* authorizing police to make unannounced entries to execute search warrants for evidence of drug dealing is reasonable, just as the bright-line rule was found reasonable in *Maryland v. Wilson*.

1. Pursuant to *Maryland v. Wilson*, a bright-line rule is reasonable when the governmental interests outweigh the individual's interests.

In *Maryland v. Wilson*, 65 U.S.L.W. at 4125 n.1, this Court noted that, although it typically avoids *per se* rules concerning searches and seizures, it does not always avoid them. Just as a bright-line rule was found to be reasonable in *Maryland v. Wilson*, in the circumstances of this case where the police were executing a search warrant for evidence of drug dealing, the bright-line rule is reasonable.

In *Stevens*, 181 Wis. 2d at 424-25, 511 N.W.2d at 595, and *Richards*, 201 Wis. 2d at 842, 844, 549 N.W.2d at 219, 220, the Wisconsin Supreme Court adopted and reaffirmed a bright-line, or blanket, rule that police are not required to adhere to the rule of announcement when executing a search warrant involving felonious drug delivery.

In approving the bright-line rule in *Maryland v. Wilson*, this Court held that "an officer making a traffic stop may order passengers to get out of the car pending completion of the stop." *Maryland v. Wilson*, 65 U.S.L.W. at 4126.

The Court approved another bright-line rule in a Fourth Amendment context in *Michigan v. Summers*, 452 U.S. 692, 705 (1981), when it held

> that a warrant to search for contraband founded on probable cause implicitly carries with it the limited authority to detain the occupants of the premises while a proper search is conducted.

(Footnotes omitted.)

Explaining the test for reasonableness under the Fourth Amendment, the Court said in *Pennsylvania v. Mimms*, 434 U.S. 106, 108-09 (1977):

> The touchstone of our analysis under the Fourth Amendment is always "the reasonableness in all the circumstances of the particular governmental invasion of a citizen's personal security." *Terry v. Ohio*, 392 U.S. 1, 19 (1968). Reasonableness, of course, depends "on a balance between the public interest and the individual's right to personal security free from arbitrary interference by law officers." *United States v. Brignoni-Ponce*, 422 U.S. 873, 878 (1975).

In *Maryland v. Wilson*, 65 U.S.L.W. at 4125, the Court balanced the public's interest in officer safety with the passengers' liberty interest. The Court concluded that the danger to the traffic officer during the traffic stop outweighed the minimal intrusion imposed on the passengers by ordering them out of the car. *Id.* at 4126.

To evaluate the reasonableness of the bright-line rule reaffirmed in *Richards*, it is necessary to balance the legitimate governmental interests in making unannounced entries to execute a search warrant for evidence of drug dealing against the occupants' interests that are protected by the rule of announcement.

Governmental interests to be considered in the balancing test are police safety, *Maryland v. Wilson*, 65 U.S.L.W. at 4125, *Summers*, 452 U.S. at 697, *Mimms*, 434 U.S. at 110, *Terry v. Ohio*, 392 U.S. 1, 23 (1968); effective crime prevention and detection, *Summers*, 452 U.S. at 697, and *Terry*, 392 U.S. at 22; prevention of flight by the occupant of the place being searched, *Summers*, 452 U.S. at 702; the orderly completion of the search, *Summers*, 452 U.S. at 702, and *United States v. Place*, 462 U.S. 696, 704 (1983); and stopping and curtailing the drug trade, *National Treasury Employees Union v. Von Raab*, 489 U.S. 656, 668 (1989), *Place*, 462 U.S. at 703, and *Stevens*, 181 Wis. 2d at 431-32, 511 N.W.2d at 598.

The occupants' interests are reflected in the three purposes of the rule of announcement:

> (1) protecting the individual's privacy in the home; (2) decreasing the potential for violence by alerting the resident that the officer is legitimately on the premises; and (3) preventing the physical destruction of property by giving the resident the opportunity to admit the officer voluntarily.

Richards, 201 Wis. 2d at 845, 549 N.W.2d at 221. *See also* Note, *Announcement in Police Entries*, 80 Yale L.J. 139, 140-42 (1970).

2. When the police execute a search warrant for evidence of drug dealing, the governmental interests in officer safety and crime detection and prevention weigh heavily in favor of a bright-line rule.

In reaffirming the bright-line rule adopted in *Stevens*, the Wisconsin Supreme Court in *Richards*, 201 Wis. 2d at 850-60, 549 N.W.2d at 223-27, employed a balancing test

and considered the primary governmental interests to be officer safety and crime detection. In adopting the rule, the court in *Stevens*, 181 Wis. 2d at 432, 511 N.W.2d at 598, had cited the governmental interests in officer safety and stopping, or at least curtailing, the drug trade. The crime prevention and detection interests are served by a no knock entry because it reduces the opportunity for the occupants to destroy evidence before the police enter. *Stevens*, 181 Wis. 2d at 425-26, 511 N.W.2d at 595.

The dangers police officers confront when entering a suspect's home to execute a search warrant have been recognized by this Court. In *Summers*, the Court considered whether the police could detain the occupant of a residence while executing a warrant to search the location for contraband. In holding that the police had the authority, the Court said in *Summers*, 452 U.S. at 702-03:

> Although no special danger to the police is suggested by the evidence in this record, the execution of a warrant to search for narcotics is the kind of transaction that may give rise to sudden violence or frantic efforts to conceal or destroy evidence. The risk of harm to both the police and the occupants is minimized if the officers routinely exercise unquestioned command of the situation.

(Footnote omitted.)

In *Maryland v. Buie*, 494 U.S. 325 (1990), the Court considered the circumstances under which police could make a protective sweep of a residence after executing an arrest warrant for one of the occupants. The Court said in *Buie*, 494 U.S. at 333:

> The risk of danger in the context of an arrest in the home is as great as, if not greater than, it is in an on-the-street or roadside investigatory encounter. . . . [U]nlike an encounter on the street or along a

> highway, an in-home arrest puts the officer at the disadvantage of being on his adversary's "turf." An ambush in a confined setting of unknown configuration is more to be feared than it is in open, more familiar surroundings.

In considering the appropriate action for the officer to take during the on-the-street encounter, this Court in *Terry*, 392 U.S. at 23, said "it would be unreasonable to require that police officers take unnecessary risks in the performance of their duties," and the Court cited American criminals' "long tradition of armed violence."

The "tradition of armed violence" is practiced by drug dealers. In *Von Raab*, 489 U.S. at 669, this Court noted that it was well known "that drug smugglers do not hesitate to use violence to protect their lucrative trade and avoid apprehension." In *Ybarra v. Illinois*, 444 U.S. 85, 106 (1979) (Rehnquist, J., dissenting), then-Justice Rehnquist pointed out that "[i]n the narcotics business, 'firearms are as much "tools of the trade" as are most commonly recognized articles of narcotics paraphernalia,'" citing *United States v. Oates*, 560 F.2d 45, 62 (2nd Cir. 1977).

The extent of the danger the police face in investigating drug dealers is reflected to a small degree in news accounts and statistics. Several news stories have reported that police were killed, injured or assaulted during narcotics investigations. Alice Thomas, *Drug Raids Becoming Riskier For Police*, The Columbus Dispatch, Jan. 19, 1996 (shooting occurred after police announced they would be coming into the home); *Detroit Police Honors*, Detroit Free Press, March 22, 1995, at 6B (officer wounded by shot fired after the police announced their presence); *Police Officer Shot While on Narcotics Case*, Chicago Tribune, Sept. 29, 1994, Chicagoland section at 2 (officer shot when suspect came to door with a weapon); David A. Sylvester, *Fatal Shootout, Fire in Drug Raid, San Jose Officer Seriously*

Injured in 1-Hour Gunbattle, San Francisco Chronicle, March 20, 1991, at A3 (officer seriously wounded when police forcibly entered after knocking and announcing and no one answered); Pierre Thomas, *One Killed, Four Wounded in Va. Drug Raid*, The Wash. Post, Jan. 11, 1990, at D1 (suspect was killed and four persons injured when gunfire erupted after the police identified themselves); Patricia Klein and William Overend, *Lawyer Killed, Officer Hurt in Raid on Alleged Cocaine Ring*, L.A. Times, Feb. 27, 1987, part 2 at 1 (officer wounded and suspect killed when the suspect fired at the police who forcibly entered after they had announced their presence with a bullhorn and unsuccessfully demanded to be admitted); Philip Watley and Henry Wood, *Vest Saves Officer in Drug Raid*, Chi. Trib., Nov. 1, 1986, at 7 (officer shot and occupant killed in gunfight that erupted after police knocked and identified themselves as police officers before entering); Marcida Dodson and Jerry Hicks, *Santa Ana Undercover Officer Shot in Face During Drug Bust*, Los Angeles Times, July 13, 1986, section one, at 25 (officers announced in English and in Spanish; and when no one answered, officer who broke through the door with battering ram was shot in the face by suspect who opened fire immediately); Joan Fleischman and Peter Hamm, *Machete-Armed Suspect Killed by Reserve Cop*, Miami Herald, Jan. 15, 1986, at 1B (after police announced, the suspect refused to answer the door; and when police entered the suspect attacked an officer with a machete and the officer shot the suspect); Ray Perez, *Suspect Killed, Officer Wounded in Shoot-Out*, Los Angeles Times, March 22, 1985, at 1, pt. 2 (after eight to ten officers surrounded the house, the suspect shot through a window, wounding an officer); and Michael H. Cottman, *2 Officers Shot in Gun Battle, Suspect Police Sought to Serve with Drug Warrant Wounded*, Miami Herald, July 26, 1984, at 1C (gun battle started after police identified themselves in English and Spanish, said they had search warrants and no one inside answered; and after door was knocked down, two officers wearing bulletproof vests were wounded in the battle that erupted).

The danger confronting the police during narcotics investigations is also reflected in the number of officers killed in drug-related situations. The following chart is based on reports of law enforcement officers killed in the years 1988 through 1994 found in the annual U.S. Department of Justice, Federal Bureau of Investigation, Uniform Crime Reports, Law Enforcement Officers Killed and Assaulted documents. In those years, 490 officers were killed. Of those, 52 were killed while involved in drug-related investigations. The deaths came in a variety of circumstances, such as during the execution of search warrants, during undercover investigations, during traffic stops where drugs were later found in the cars and other situations involving drugs. The chart indicates the total number of officers killed in the year and the number killed in various drug related situations.

Year	Total offcrs killed	Executing search warrant	Undercover and other investig'n	Traffic stops drugs found	Retaliatory shooting
1994	76	0	4	0	0
1993	70	4	2	1	0
1992	63	2	1	0	1
1991	71	0	4	1	2
1990	66	2	5	2	0
1989	66	5	2	1	0
1988	78	3	10	0	0
Total	490[3]	16[4]	28[5]	5[6]	3[7]

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[3]The totals of officers killed can be found at page 31 of *Law Enforcement Officers Killed and Assaulted 1994.*

[4]The reports of officers killed while executing search warrants can be found at the following pages of the respective annual issues of *Law Enforcement Officers Killed and Assaulted*: 1993 at 41, 47, 50 and 57; 1992 at 42-43 and 47; 1990 at 23 and 30; 1989 at 26-27 (three victims), 37 and 43; and 1988 at 24, 29 and 31.

That the number of drug-related deaths in the four year period of 1991-94 is less than the number for the three year period of 1988-90 does not mean that the danger is lessening. In 1990, researchers attributed the drop in police deaths to better officer training and in the increased use of bullet-resistant vests. Newsweek, *Arms Race on Hill Street*, Nov. 19, 1990, at 58. Yet, of the 52 officers killed, 23 were wearing protective vests or body armor.[8]

Based on the drug arrest rate, drug-related crime and violence will continue. "The current drug problem began to emerge in the early 1980s and then accelerated

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[5]The reports of officers killed while involved in undercover and other investigations can be found at the following pages of the respective annual issues of *Law Enforcement Officers Killed and Assaulted*: 1994 at 43, 44, 49 and 55; 1993 at 49 and 54; 1992 at 52; 1991 at 45, 46 and 49 (two victims); 1990 at 23, 25, 31, 32 and 33; 1989 at 35-36 and 32; and 1988 at 24, 25 (two victims), 26, 30, 31, 33, 35 and 37.

[6]The reports of officers killed while involved in traffic stops where drugs were later found can be found at the following pages of the respective annual issues of *Law Enforcement Officers Killed and Assaulted*: 1993 at 52; 1991 at 37; 1990 at 35 (two victims); and 1989 at 40.

[7]The reports of officers killed in retaliation for their drug investigations can be found at the following pages of the respective annual issues of *Law Enforcement Officers Killed and Assaulted*: 1992 at 52-53; and 1991 at 44 and 47.

[8]The summaries of the cases where the officers wore vests are found at the following pages in the respective annual report of *Law Enforcement Officers Killed and Assaulted*: 1994 report at 49; 1993 report at 41, 47 and 57; 1992 report at 42-43 and 47; 1991 report at 49; 1990 report at 23, 25 and 30; 1989 report at 26 (two victims), 27, 32, 40 and 43; and 1988 report at 24 (two victims), 29, 30, 31, 33 and 35.

significantly in the mid-80s." Alfred Blumstein, *Youth Violence, Guns, and the Illicit-Drug Industry*, 86 J. Crim. L. & Criminology 10, 28 (1995). "The drug arrest rate accelerated appreciably after 1985 with the wide distribution of crack-cocaine." *Id.*

As pointed out by the Wisconsin Supreme Court, a large problem for the police is the sophisticated weapons used by the drug dealers. *Richards*, 201 Wis. 2d at 855, 549 N.W.2d at 225. Drug dealers have semi-automatic and automatic weapons, Uzis and assault rifles. Newsweek, *Arms Race on Hill Street*, Nov. 19, 1990, at 58; The Police Chief, *Drug Dealers' Sophisticated Weaponry Poses Continuing Threat*, March 1988, at 47; Newsweek, *The Drug Gangs*, March 28, 1988, at 20.

Not only are sophisticated weapons available to drug dealers, there is an increase in the distribution of guns. One case reported that a 1973 study showed that ten percent of drug suspects arrested in Washington, D.C., were armed. *United States v. White*, 648 F.2d 29, 35 n.29 (D.C. Cir. 1981). Recent studies reveal more widespread access to guns. A study revealed that, among arrestees who admitted selling illegal drugs in the previous year, 25 percent reported they carried a gun all or most of the time. *Arrestees and Guns: Monitoring the Illegal Firearms Market*, National Institute of Justice, Research Preview, September 1995. Another survey of arrestees in eleven major urban areas revealed that 42 percent of drug sellers admitted using a gun to commit a crime. *Illegal Firearms: Access and Use By Arrestees*, National Institute of Justice, Research in Brief, January 1997, at 1 and 3.

Police experience finds that guns are frequently found at the locations of drug search warrants. *Stevens*, 181 Wis. 2d at 420, 511 N.W.2d at 593 (officer found guns in 85 to 90 percent of the 90 drug searches he had done); *State v. Guy*, 172 Wis. 2d 86, 92, 492 N.W.2d 311, 313 (1992) (officer found weapons in most of the 300 to 400 drug

search warrants he executed); *State v. Harris*, 95 N.C. App. 691, 693, 384 S.E.2d 50, 51 (1989) (officers said weapons were found on or near suspects in 85 to 98 percent of the narcotics searches in which they participated); and *State v. Stalbert*, 99 Or. App. 582, 586, 783 P.2d 1005, 1007 (1989) (officer testified that in 80 to 90 percent of the drug raids that he had been involved in, weapons were found). In 1986, the police department executed 127 drug search warrants in one area of New York City and recovered 126 firearms. The Police Chief, *Guns, Drugs and Violence, An Unholy Alliance*, by Benjamin Ward, Police Commissioner, New York City Police Department, New York, March 1988, at 52.

As evidenced by the number of police killed in drug-related circumstances, not only do the drug dealers have sophisticated weapons, they use them. In 1989, Francis C. Hall, commander of the New York City Police Department's narcotics division, said, "Drug suspects don't surrender any more. They fight, they grab you, and a lot of them will kill you if they can." New York Times, *THE REGION - Q & A: New York's Drug Commander; Report From the Field On an Endless War*, March 12, 1989, sec. 4 at 1. He said that the people involved in drug trafficking have a total lack of fear of law enforcement. *Id.* Other comments regarding the willingness of drug suspects to fight the police are found in Newsweek, *On the Firing Line*, May 29, 1989, at 32; Time, *The Other Arms Race; America's Streets Become Free-Fire Zones as Police, Criminals and Terrified Citizens Wield More and Ever Deadlier Guns*, Feb. 6, 1989, at 20; and Newsweek, *Losing the War?*, March 14, 1988, at 16.

These facts support the Wisconsin Supreme Court's statement that "[p]olice officers face an unquantifiable risk of violence every time they go into a house to execute a search warrant." *Richards*, 201 Wis. 2d at 850, 549 N.W.2d at 223 (footnote omitted). They also demonstrate the risk police officers take when they enter a residence to

execute a drug search warrant. The Wisconsin Supreme Court, quoting from Note, D. Allegro, *Police Tactics, Drug Trafficking, and Gang Violence: Why the No-Knock Warrant Is an Idea Whose Time Has Come*, 64 Notre Dame L. Rev. 552, 566 (1989), pointed out in *Richards*, 201 Wis. 2d at 852, 549 N.W.2d at 223-24, that the risk is increased when the officers knock and announce before entering:

> [A] police officer making a high-risk warrant entry is at a severe disadvantage. When he announces authority and purpose he makes himself readily identifiable. The suspect, concealed inside a house, will generally be able to see the officer, or know where the officer is since he is most often near the door. Even if the officer can see occupants inside the house, he does not know if they intend to resist unless they are naive enough to reveal their violent intentions. The officers are most vulnerable when entering the house. If the announcement has given the [suspect] time to arm himself, all he needs to do is aim his firearm at the door and wait for a target to appear.

The rationale of the Wisconsin Supreme Court in *Richards*, 201 Wis. 2d at 850-60, 549 N.W.2d at 223-27, and the facts cited here demonstrate that the governmental interest in police safety weighs heavily in favor of the bright-line rule that was reaffirmed in *Richards*.

The other governmental interest relied upon by the Wisconsin Supreme Court is crime detection and prevention in the context of preventing the destruction of evidence. The court in *Richards*, 201 Wis. 2d at 856, 549 N.W.2d at 225, noted that in *Stevens*, 181 Wis. 2d at 425, 511 N.W.2d at 591, it had recognized

> that the "easily disposable nature of narcotics provides police with evidence sufficient to form a reasonable belief that no-knock entry is necessary to prevent the destruction of evidence."

The concern that suspects will destroy evidence, or at least attempt to destroy evidence, is supported by the ease with which drugs can be destroyed and by the testimony of police officers who have found in their experience that occupants attempt to destroy the evidence when the officers announce their presence prior to entry. *United States v. Wilson*, 899 F. Supp. 521, 529 (D. Kan. 1995); *United States v. Murcer*, 849 F. Supp. 288, 294 (D. Del. 1994); *Henson v. State*, 236 Md. 518, 523, 204 A.2d 516, 519-20 (Ct. App. 1964); *State v. Meyer*, 209 Neb. 757, 760-61, 311 N.W.2d 520, 522 (1981); *Robinett v. Carlisle*, 928 S.W.2d 623, 627 n.5 (Tex. Ct. App. 1996).

In *State v. Loucks*, 209 N.W.2d 772, 777 (N.D. 1973), the court, in upholding a no knock entry, said it could take judicial notice that drugs may be easily destroyed. In *People v. Lujan*, 174 Colo. 554, 559, 484 P.2d 1238, 1241 (1971), the court found that it would always be true that giving notice would give the police reason to believe that narcotics would be destroyed.

Other cases demonstrate the destructibility of narcotics because, when the police entered, they found the suspects disposing of the drugs in the toilet. *Wilson v. Arkansas*, 115 S. Ct. at 1916; *United States v. Bonner*, 874 F.2d 822, 823 (D.C. Cir. 1989); *United States v. Carter*, 566 F.2d 1265, 1267-68 (5th Cir. 1978); and *Stalbert*, 99 Or. App. at 584, 783 P.2d at 1006.

Even if the occupants are unable to destroy all of the evidence, they can benefit their own interests by disposing of as much of the narcotics as possible. In Wisconsin, the penalties for various drug crimes vary depending upon the quantity of the drug involved. *See, e.g.*, Wis. Stat. §

961.41(1) (1995-96) (R-Ap. at A1-5). Thus, even if the occupants cannot destroy all of the drugs, they may lessen their penalties by destroying some.

The cases cited above demonstrate the accuracy of this Court's statement in *Summers*, 452 U.S. at 702, that "the execution of a warrant to search for narcotics is the kind of transaction that may give rise to . . . frantic efforts to conceal or destroy evidence." As also noted by the Court in *Summers*, 452 U.S. at 702-03, the risk of harm to the police and the occupants (and also to the evidence) "is minimized if the officers routinely exercise unquestioned command of the situation." The Wisconsin Supreme Court in *Richards*, 201 Wis. 2d at 856-57, 549 N.W.2d at 225, found that allowing the police to take command by making a no knock entry protects the safety of the officers and enables the officers to seize the evidence of the drug dealing. The no knock entry, therefore, achieves the goal cited in *Summers* of minimizing the risk to the police, the occupants and the evidence.

No knock entries also promote the governmental interest in preventing escape. This point was vividly demonstrated in this case when the police found the defendant and his companion going out the window as the police entered the room. Had the police waited any longer before entering, the defendant might well have eluded them.

3. When the police execute a search warrant for evidence of drug dealing, the individual's interests served by announcement are minimal.

Against the governmental interests in no knock entries must be balanced the interests of the individual that are protected by an announcement. The individual has three

interests: privacy in the home; avoiding violence; and avoiding the destruction of property. Of the three interests, courts have shown the most concern for protecting individual privacy. *United States v. Francis*, 646 F.2d 251, 258 (6th Cir. 1981).

The search warrant authorizes "a substantial invasion of the privacy of the persons who" reside at the location to be searched. *Summers*, 452 U.S. at 701.

Because drugs could be hidden anywhere in the home, the warrant entitles the police to search everywhere in the home because the warrant entitles the police to search everywhere that the drugs could be hidden. *United States v. Ross*, 456 U.S. 798, 820-21 (1982).

After the police knock and announce their presence and purpose, the occupant has only ten seconds of privacy remaining because numerous courts have concluded that the police have a right to forcibly enter the home if the occupant has not responded within ten seconds of the announcement. *United States v. Myers*, No. 96-3105, 1997 WL 43843, *3 (D. Kan. Feb. 5, 1997); *United States v. Gatewood*, 60 F.3d 248, 249-50 (6th Cir. 1995); *United States v. Kemp*, 12 F.3d 1140, 1142 (D.C. Cir. 1994); *United States v. Garcia*, 983 F.2d 1160, 1168 (1st Cir. 1993); *United States v. Wysong*, 528 F.2d 345, 348 (9th Cir. 1976); *United States v. Phelps*, 490 F.2d 644, 647 (9th Cir. 1974); *United States v. Allende*, 486 F.2d 1351, 1353 (9th Cir. 1973); *People v. Saechao*, 129 Ill. 2d 522, 533-34, 136 Ill. Dec. 59, 544 N.E.2d 745, 750 (1989); and *State v. Jones*, 15 Wash. App. 165, 166-67, 547 P.2d 906, 907-08 (1976).

The limited privacy right enjoyed by the occupant was discussed in *Richards*, 201 Wis. 2d at 858, 549 N.W.2d at 226, quoting from Sonnenreich and Ebner, *No-Knock and Nonsense, An Alleged Constitutional Problem*, 44 St. John's L. Rev. 626, 647 (1970):

> It is difficult to see, however, what actual protection is given to any right of privacy by the announcement rule. Once identity and purpose are stated, entry must always be permitted; if permission is denied, or even delayed for an inordinate amount of time, entry may be forced, provided the officer has a valid purpose in gaining admission. Since no discretion is vested in the occupant, in what manner does notice protect his privacy? . . .
>
> Thus balanced, the protections to privacy seem to be somewhat tenuous when compared to the potential for public harm. This is particularly true with respect to potential destruction of evidence, especially when one considers that the probable cause requirement would have to be met in any event.

The occupant's right of privacy, therefore, is a very limited one that he or she can have no expectation of enjoying for more than ten seconds after the announcement.

The individual's property interest is also minimal when considered in the context of the history of the rule of announcement. At the inception of the rule in seventeenth century England, "doors and window shutters could not be easily replaced, and, if damaged, they could not shield the homeowner from the severe dangers outside." *Announcement in Police Entries*, 80 Yale L.J. at 142. The request to enter from the official gave the property owner the opportunity to protect his "bulwark of safety from being destroyed." *Id.*

Because doors and windows can be easily and quickly repaired today, the individual's property interest is much less now than at the inception of the rule of announcement.

The individual's final interest is in avoiding harm to himself or herself. However, the occupant shares that concern equally with the police officer. If a no knock entry is safer for the officer, it is also safer for the occupant. If the no knock entry reduces the chances that the officer will be confronted by violence, the no knock entry also means the occupant will be less likely to start the violence. By the no knock entry, the police can exercise command of the situation as soon as possible and, thereby, minimize the risk to themselves and to the occupants.

4. Governmental interests outweigh the limited individual interests to render the bright-line rule reasonable.

In *Maryland v. Wilson*, 65 U.S.L.W. at 4126, this Court concluded that the danger to an officer from a traffic stop outweighed the minimal intrusion imposed upon a passenger who is ordered out of the car; and the Court approved the blanket rule that authorizes an officer making a traffic stop to order passengers as well as the driver to get out of the car pending completion of the stop.

In this case also, because the governmental interests in officer safety and crime detection and prevention outweigh the interests of the occupants, the bright-line rule reaffirmed by the Wisconsin Supreme Court in *Richards* satisfies the reasonableness test under the Fourth Amendment.

The occupant's privacy interests are greatly diminished because the police have a warrant authorizing them to search everywhere that drugs can be found; and, if the police knock and announce, they can still forcibly enter the home if the occupant does not get to the door in ten seconds. The occupant's property interest is not as significant as when the rule of announcement was

formulated because repairing damaged property is not a difficult task in these times. Finally, the occupant's safety interest is the same as the officers'.

The governmental interests in protecting officer safety and preventing the destruction of evidence to detect and prevent crime are real and significant when the police execute a search warrant for evidence of drug dealing at the dealer's dwelling. The chances are great that the dealer will have a gun and the willingness to use it when the police knock and announce their identity before entering the home to search for the contraband and other evidence of drug dealing. The chances are even greater that the drug dealer will attempt to destroy the narcotics if the police announce their identity and presence and allow the occupant time to answer the door before the police enter. Instead of answering the knock, it is easy for the drug dealer to destroy the evidence. As this Court pointed out in *Summers*, 452 U.S. at 702-03, the risks of harm to the officers and to the occupants are minimized "if the officers routinely exercise unquestioned command of the situation." Because the bright-line rule reaffirmed by the court in *Richards* enables the police to take command of the situation as soon as possible when they execute a search warrant for evidence of drug dealing, the rule is reasonable under the Fourth Amendment.

The defendant criticizes the bright-line rule because, he claims, there are no effective remedies for mistakes. Petitioner's Brief at 32-33.

Contrary to the defendant's suggestion, remedies are available if the police err. For some police errors, the aggrieved party is able to seek relief pursuant to 42 U.S.C. § 1983. *Bonner v. Anderson*, 81 F.3d 472 (4th Cir. 1996) (police officer's motion for summary judgment properly denied); *Buonocore v. Harris*, 65 F.3d 347, 351 (4th Cir. 1995) (police officer's motion for summary judgment properly denied); *Fontenot v. Cormier*, 56 F.3d 669, 673,

676 (5th Cir. 1995) (plaintiff awarded compensatory and punitive damages for officers' warrantless entry into home); *Hartsfield v. Lemacks*, 50 F.3d 950 (11th Cir. 1995) (police officer not entitled to summary judgment when he led other officers to wrong house to execute search warrant); and *Baker v. Monroe Township*, 50 F.3d 1186 (3rd Cir. 1995) (officer in charge was not entitled to summary judgment against claims of Fourth Amendment violations for excessive use of force and wrongful search of a plaintiff). The desire to avoid the consequences of civil litigation will motivate the police to use their authority under a bright-line rule cautiously.

The dangers inherent in unannounced home entries provide the strongest motivation for the police to knock and announce when it is prudent to do so. As the court explained in *State v. Valentine*, 264 Or. 54, 67-68, 504 P.2d 84, 90 (1972), "police self-interest should dissuade police from making entries" in violation of the rule of announcement. In their own interest, the police want to enter in the safest possible manner. If knocking and announcing is not safe, the police should not be required to do it.

The bright-line rule reaffirmed by the Wisconsin Supreme Court permits the police to choose the safest method for entering the residence. *Richards*, 201 Wis. 2d at 856-57, 549 N.W.2d at 225. The method of entry that is safest for the police is also safest for the occupants because, if fighting breaks out, both sides can suffer casualties. Because the governmental interests of safety and crime prevention promoted by the bright-line rule outweigh the interests of the individual, the rule reaffirmed by the Wisconsin Supreme Court in *Richards* passes the reasonableness rule in *Maryland v. Wilson* and the rule is in compliance with the Fourth Amendment.

5. Under the bright-line rule in *Richards*, the police entry in this case was reasonable.

Under the rule reaffirmed in *Richards*, the police can enter a residence without knocking and announcing their identity and purpose when they are executing a search warrant for evidence of drug dealing. The police were executing such a warrant in this case.

The affidavit, which was submitted in requesting the warrant and which was based on information from an informant and police records, showed that the defendant and others engaged in the same conduct drug traffickers do by paying for a motel room with cash in advance, by refusing room service and by making and receiving numerous telephone calls in their room (J.A. 5). In addition, after the defendant and his companions left one room, police found in the room clear plastic sandwich bags like the ones used as a packaging material for cocaine (J.A. 6). Police records showed that the defendant had previously been arrested while possessing sixty-three packets of cocaine (J.A. 6). Because this information and the other statements in the affidavit provided the probable cause to believe that the defendant was engaged in drug dealing, the bright-line rule reaffirmed in *Richards* authorized the police to make a no knock entry to execute the warrant. Because the entry was authorized by a rule that passes the Fourth Amendment reasonableness test, the entry was reasonable.

C. When police execute a warrant to search a dwelling for evidence of drug dealing and they do not know the amount of drugs at the dwelling or whether the drug dealer has weapons, an unannounced entry is reasonable under *Wilson v. Arkansas*.

Even if this Court concludes that the governmental interests protected by the bright-line rule in *Richards* do not justify such a rule, the entry into the defendant's room in this case was reasonable under the circumstances known to the police before they went to the room. If a bright-line rule is not appropriate, the test for reasonableness is related in the recent decision of this Court in *Robinette*, 117 S. Ct. at 421, where the Court emphasized "the fact-specific nature of the reasonableness inquiry."

An unannounced entry to execute a search warrant is reasonable when the police have reason to believe that announcement will present a threat to their safety, flight by the suspect or the destruction of evidence. *Wilson v. Arkansas*, 115 S. Ct. at 1918-19.[9] Police have "reason to believe" when they have sufficient particular information to provide reasonable suspicion that announcement will present a threat to safety, the flight of the suspect or the destruction of evidence. As illustrated in the context of "stop and frisk" cases," the particularity requirement is satisfied by the nature of the crime being investigated. Just as the police have reason to frisk a person they suspect of being a drug dealer, they have reasonable suspicion to support an unannounced entry when they

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[9]As this Court explained in *Wilson v. Arkansas*, 115 S. Ct. at 1919, there can be other circumstances under which an unannounced entry is reasonable; but the threat to safety, the flight of the suspect and the destruction of the evidence were the only ones expressly addressed by the Court in that case.

have a search warrant, supported by probable cause, that shows the dwelling houses a drug dealer. As long as the information available to the police demonstrates that the suspect is a drug dealer, an unannounced entry to execute the search warrant for evidence of drug dealing is reasonable. In this case, the entry was reasonable because, even though the police did not have information showing that the defendant had weapons or that showed the amount of drugs expected to be found in the room, the police had information providing probable cause to believe the defendant was a drug dealer .

In *Robinette*, 117 S. Ct. at 421, this Court said: "Reasonableness, in turn, is measured in objective terms by examining the totality of the circumstances." The Court explained that, in applying the test, it emphasized "the fact-specific nature of the reasonableness inquiry." *Id.*

The "reasonableness" in a particular situation "must be judged from the perspective of a reasonable officer on the scene, rather than with the 20/20 vision of hindsight." *Graham v. Connor*, 490 U.S. 386, 396 (1989). The constitutional reasonableness of police action does not depend on the actual motivations of the individual officers. *Whren v. United States*, 116 S. Ct. 1769, 1774 (1996).

Usually reasonableness requires satisfaction of a probable cause requirement. *Buie*, 494 U.S. at 331. In some situations, however, the satisfaction of the lower "reasonable suspicion" standard renders the police action reasonable. *See, e.g., Terry v. Ohio.*

To assess the reasonableness of the police entry in this case under the test in *Robinette*, the first question that must be addressed is what level of justification (probable cause or reasonable suspicion) the Fourth Amendment requires to render a no knock entry reasonable. As explained in *Place*, 462 U.S. at 703, the balancing test is employed to determine the level of justification:

> The exception to the probable-cause requirement for limited seizures of the person recognized in *Terry* and its progeny rests on a balancing of the competing interests to determine the reasonableness of the type of seizure involved within the meaning of "the Fourth Amendment's general proscription against unreasonable searches and seizures." We must balance the nature and quality of the intrusion on the individual's Fourth Amendment interests against the importance of the governmental interests alleged to justify the intrusion. When the nature and extent of the detention are minimally intrusive of the individual's Fourth Amendment interests, the opposing law enforcement interests can support a seizure based on less than probable cause.

(Citation omitted.) *See also Michigan v. Summers*, 452 U.S. at 699-700 (some seizures constitute such limited intrusions on personal security that they are justified by law enforcement interests on less than probable cause as long as police have an articulable basis for suspecting criminal activity).

The individual and governmental interests to be balanced are the same ones considered in applying the *Maryland v. Wilson* balancing test to evaluate a bright-line rule. The primary governmental interests are the safety of the officers, the detection and prevention of crime by preventing the destruction of evidence and the prevention of the flight of the suspects. The primary interests of the individual are privacy, safety and protection of property.

In *Buie,* this Court conducted the balancing test in a case with interests similar to those in this case. The issue in *Buie* was the level of justification the police needed to make a protective sweep of a home after arresting a suspect. *Buie*, 494 U.S. at 327, 330. The Court considered the danger the police face when going into the suspect's

home and pointed out that the officer is at a disadvantage because he is on his adversary's "'turf.'" *Buie*, 494 U.S. at 333. The Court noted that an ambush in an unknown configuration was more to be feared than one in open, more familia. surroundings. *Id.* The Court said that the arresting officers are permitted to take reasonable steps to ensure their safety after, and while making, the arrest; and that safety interest was found to be sufficient to outweigh the intrusion the procedures might entail. *Buie*, 494 U.S. at 334. The Court held that, after making the arrest, the police could conduct a protective sweep of the residence if they had articulable facts and rational inferences from those facts "that would warrant a reasonably prudent officer in believing that the area to be swept harbors an individual posing a danger to those on the arrest scene." *Buie*, 494 U.S. at 334.

In *Terry*, 392 U.S. at 20-27, the Court conducted a balancing test and concluded that governmental interests in officer safety and crime detection justified officers stopping and frisking suspects if the lower reasonable suspicion standard was met. The Court explained that the officer could pat down the suspect for weapons

> where he [the officer] has reason to believe that he is dealing with an armed and dangerous individual, regardless of whether he has probable cause to arrest the individual for a crime. The officer need not be absolutely certain that the individual is armed; the issue is whether a reasonably prudent man in the circumstances would be warranted in the belief that his safety or that of others was in danger.

Terry, 392 U.S. at 27.

In the context of the execution of search warrants, governmental interests in the safety of the officers and the

detection and prevention of crime outweigh the individual's interests so that the police can make an unannounced entry to execute a warrant if they have reasonable suspicion that announcement of identity and purpose would result in a threat to their safety or the safety of others, or the flight of the suspect or the destruction of evidence. Because reasonable suspicion has been described as "'a particularized and objective basis' for suspecting . . . criminal activity," *Ornelas v. United States*, 116 S. Ct. 1657, 1661 (1996), the police would be entitled to make the no knock entry if they had a particularized and objective basis for suspecting that an announcement would result in a threat to safety, the flight of the suspect or the destruction of evidence.

The defendant in this case appears to agree that the reasonable suspicion test applies to the officers' entry into the residence because at the end of his brief he contends that the test in *Buie* should apply. Petitioner's Brief at 41-44.[10]

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[10]The Brief *Amicus Curiae* of the American Civil Liberties Union at 25-26 n.39, contends that the standard should be probable cause rather than reasonable suspicion. The Brief *Amicus Curiae* admits that the reasonable suspicion standard has been applied where confrontations raise legitimate concerns for officer safety. *Id.* at 26 n.39.

The authority cited by the Brief *Amicus Curiae* to support the use of the probable cause standard is not applicable to the execution of search warrants. The cases cited all involved warrantless entries. *Minnesota v. Olson*, 495 U.S. 91 (1990); *Welsh v. Wisconsin*, 466 U.S. 740 (1984); *United States v. Santana*, 427 U.S. 38 (1976); *Warden v. Hayden*, 387 U.S. 294 (1967); *McDonald v. United States*, 335 U.S. 451 (1948); and *Johnson v. United States*, 333 U.S. 10 (1948). In those cases, where the exigent circumstances substituted for a warrant, it is logical to require the probable cause standard to be satisfied. When, however, the police have a warrant, governmental interests in safety and crime prevention dictate that only the

The information available to the police before they entered the defendant's room satisfied the reasonable suspicion test to justify a no knock entry. The information is contained in the Complaint for Search Warrant, which provided probable cause to believe that evidence of drug dealing would be found in the defendant's room (J.A. 2-8). In other words, the information that provides probable cause to believe that evidence of drug dealing will be found at the residence also provides the necessary particularized and objective basis for suspecting that a knock and an announcement of police identity and purpose prior to entry will result in a threat to the safety of the officers and the destruction of the evidence. Thus, the nature of the crime of drug dealing provides the necessary reasonable suspicion.

In at least two cases, this Court has recognized that the applicable level of justification is satisfied by the nature of the crime being investigated.

In *Terry*, 392 U.S. at 28, the Court explained that, where the police officer could conclude that defendants were acting in a manner consistent with a stick-up, a reasonably prudent man would be warranted in believing the defendants were armed and, thus, presented a threat to the officer's safety. The Court said that the actions of Terry and Chilton were consistent with the officer's hypothesis that the men were contemplating a daylight robbery -- which, it is reasonable to assume, would be likely to involve the use of weapons. *Id.* In other words, the nature of a day-time robbery provided the basis for the frisk.

In *Tennessee v. Garner*, 471 U.S. 1, 11-12 (1985), this Court explained when a police officer could use deadly force to seize a suspect. An officer can use deadly force when he

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reasonable suspicion standard need be satisfied to justify the no knock entry to execute the warrant.

or she has probable cause to believe that the suspect poses a threat of serious physical harm to the officer or others. The probable cause standard was satisfied where the officer gave some warning, if feasible, and the suspect threatened the officer with a weapon or there was probable cause to believe that the suspect had committed a crime involving the infliction of serious physical harm. *Id.*

In *Garner*, then, the nature of a suspected crime could provide the officer with the necessary level of justification to use deadly force.

When the police have a warrant to search for evidence of drug dealing, the nature of the crime of drug dealing gives the police reasonable suspicion to believe that they will face a threat to their safety and that the suspect will attempt to destroy the evidence if the police knock and announce their identity and presence. Under these circumstances, entry without announcement is reasonable under *Wilson v. Arkansas*.

Courts in a series of cases have concluded that when police suspect someone of drug dealing they have the necessary particular facts to justify a frisk because of the known connection between drug dealing and weapons and violence. In *United States v. McMurray*, 34 F.3d 1405, 1410 (8th Cir. 1994), the court held:

> The officers' reasonable suspicion that McMurray was dealing drugs provides an adequate basis for them to reasonably believe that he might be armed and dangerous, because "weapons and violence are frequently associated with drug transactions." *United States v. Brown*, 913 F.2d 570, 572 (8th Cir. 1990).

Other cases finding the frisk was justified after the officer had reason to believe the suspect was a drug dealer are *United States v. Brown*, 913 F.2d 570, 572 (8th Cir.

1990) (frisk justified because "weapons and violence are frequently associated with drug transactions"); *United States v. Salas*, 879 F.2d 530, 535 (9th Cir. 1989) (it "is not unreasonable to assume that a dealer in narcotics might be armed"); *United States v. Nersesian*, 824 F.2d 1294, 1317 (2nd Cir. 1987) (reasonable to assume that suspected narcotics courier who carries money and narcotics might carry a weapon; and firearms are as much tools of the narcotics trade as commonly recognized narcotics paraphernalia); *United States v. Clark*, 754 F.2d 789, 792 (8th Cir. 1985) ("it is common knowledge among drug enforcement personnel that narcotics dealers are likely to carry firearms"); and *United States v. Vasquez*, 634 F.2d 41, 43 (2nd Cir. 1980) (frisk justified, "particularly in view of the violent nature of narcotics crime").

In *United States v. Post*, 607 F.2d 847, 851 (9th Cir. 1979), the court compared a suspected drug dealer with the suspect in *Terry* and said that, just as it was reasonable to assume from the nature of the offense that Terry was dangerous, it "is not unreasonable to suspect that a dealer in narcotics might be armed."

At least three cases have pointed out that the reasonable suspicion that the suspect is armed and dangerous is based on the crime involved; and, in each of the cases, the courts found that the nature of the crime of drug dealing provided the necessary reasonable suspicion to justify the frisk of the suspect. *Vasquez*, 634 F.2d at 43; *Post*, 607 F.2d at 851; and *United States v. Oates*, 560 F.2d 45, 62 (2nd Cir. 1977).

If *reasonable suspicion* that the suspect is a drug dealer provides the police with the particularized and objective information they need to frisk the suspect, then a warrant for evidence of drug dealing that is based on *probable cause* provides the police with particularized and objective information that they face a threat of harm from the drug

dealer when they execute the search warrant. This information justifies the no knock entry.

Finding the no knock entry reasonable because of the connection between drug dealing and guns and violence is consistent with decisions of federal courts in other areas. When suspects are charged with drug offenses, guns are admissible as relevant evidence because they are tools of the trade. *United States v. Ramirez*, 45 F.3d 1096, 1103 (7th Cir. 1995); *United States v. Nixon*, 918 F.2d 895, 904 (11th Cir. 1990); *United States v. Alvarez*, 860 F.2d 801, 829-30 (7th Cir. 1988); *United States v. Payne*, 805 F.2d 1062, 1064-65 (D.C. Cir. 1986); and *United States v. Wiener*, 534 F.2d 15, 18 (2nd Cir. 1976). The connection between guns and drugs has also been given as the reason for permitting joinder of drug and gun charges, *United States v. Windom*, 19 F.3d 1190, 1197 (7th Cir. 1994), and for admitting guns as evidence of involvement in drug conspiracies, *United States v. Vegas*, 27 F.3d 773, 778 (2nd Cir. 1994); *United States v. Terzado-Madruga*, 897 F.2d 1099, 1120 (11th Cir. 1990); and *United States v. Green*, 887 F.2d 25, 27 (1st Cir. 1989).

The statistics regarding drug-related murders of police officers, the weapons available to drug dealers, the willingness of drug dealers to resist police and the continued rise of drug use, in addition to the judicially recognized connection between drugs and guns and violence, provide the police with particularized and objective information to show that they face the threat of danger when they execute a search warrant for drug dealing. Because the execution of the drug search warrant creates the circumstances that present a threat to the safety of the officers, a no knock entry is reasonable under the Fourth Amendment. The entry of the room in this case, which was made under the authority of the warrant to search for evidence of drug dealing, was reasonable.

The ease with which drugs are destroyed also provides the police with a particularized and objective basis to believe that, if they knock and announce before entering to execute a drug search warrant, the occupant will destroy evidence.

The particularized and objective basis for believing that knocking and announcing prior to entry to execute a drug search warrant will result in the destruction of evidence is based on experience and judicial notice. As noted earlier in this brief, police officers have testified that, in their experience, occupants attempt to destroy the evidence when the officers announce their presence prior to entry. *United States v. Wilson*, 899 F. Supp. at 529; *Murcer*, 849 F. Supp. at 294; *Henson*, 236 Md. at 523, 204 A.2d at 519-20; *Meyer*, 209 Neb. at 760-61, 311 N.W.2d at 522; and *Robinett v. Carlisle*, 928 S.W.2d at 627 n.5. A small sampling of other cases demonstrates that the police find the occupants disposing of the drugs in the toilets when the police enter. *Wilson v. Arkansas*, 115 S. Ct. at 1916; *Bonner*, 874 F.2d at 823; *Carter*, 566 F.2d at 1267-68; and *Stalbert*, 99 Or. App. at 584, 783 P.2d at 1006. Cases where courts took judicial notice of the ease with which drugs are destroyed to justify no knock entries include *Loucks*, 209 N.W.2d at 777, and *Lujan*, 174 Colo. at 559, 484 P.2d at 1240.

The police in this case came to the defendant's door to execute a search warrant for evidence of drug dealing. Because the search warrant and the information used to obtain it provided the police with reasonable suspicion to believe that they faced the threat of danger and the destruction of evidence if they knocked and announced their presence, they were authorized to enter without announcement. Under the circumstances of this case, where they knocked and gave the defendant an opportunity to open the door, their entry prior to announcing their purpose was reasonable under the Fourth Amendment and *Wilson v. Arkansas*.

D. The police entry into the defendant's room was reasonable because further announcement after the defendant closed and locked the door would have been a useless gesture.[11]

The entry in this case was reasonable for a third reason. The police knocked and the defendant opened the door (J.A. 38). However, after the defendant looked in the direction of the uniformed officer, the defendant closed the door and locked it (J.A. 38-39). The police then announced themselves as police officers and forced open the door (J.A. 39-40, 44-45). Prior to opening the door, the police had not announced their purpose (J.A. 66). Under these circumstances, the police entry was reasonable because, once the defendant closed the door after looking in the direction of the uniformed officer, further announcement and delay by the police would have been a "useless gesture."

This Court has recognized that completion of all the steps of the rule of announcement by the police is unnecessary when the police are virtually certain that the occupant knows their purpose "so that an announcement would be a useless gesture." *Miller v. United States*, 357 U.S. 301, 310 (1958). *See also Wilson v. Arkansas*, 115 S.

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[11]The Wisconsin Supreme Court did not reach the "useless gesture" issue because the court affirmed the conviction without having to consider the question. The State of Wisconsin briefed the issue before the Wisconsin Supreme Court, however; and Wisconsin raised the issue in this Court in the "Brief in Opposition to Petition for a Writ of Certiorari" at pages i and 11-12. This issue should be addressed by this Court, or the state supreme court on remand, if this Court does not affirm the Wisconsin Supreme Court on the basis of the bright-line rule or the ground that the police had reasonable suspicion to support an entry without announcement of their purpose.

Ct. at 1917, and *Ker v. California*, 374 U.S. 23, 47 (1963) (Brennan, J., dissenting).

The court explained in *United States v. Tracy*, 835 F.2d 1267, 1270 (8th Cir. 1988), that announcement of purpose was excused when it constituted a useless gesture because the facts known to the officers justified them in being virtually certain the suspect already knew their purpose.

In *Commonwealth v. Antwine*, 417 Mass. 637, 639, 632 N.E.2d 818, 819 (1994), the court said that if the facts known to the police make it virtually certain that the occupant already knows the police's purpose, "the useless gesture exception excuses the police from full compliance with the rule" of announcement.

In this case, the police satisfied some of the requirements of the rule of announcement because they knocked and allowed the defendant time to come to the door. In addition, the presence of the uniformed officer satisfied the requirement that the police announce their identity. After opening the door, the defendant looked over the shoulder of Detective Pharo and saw the uniformed officer. The conclusion that he saw the uniformed officer is based on the evidence that he looked in the direction of the officer and Detective Pharo saw the defendant's expression change to one of surprise (J.A. 37-38, 40). In addition, after the defendant denied seeing the uniformed officer, the trial court found that the defendant's testimony was self-serving and lacking some credibility (J.A. 47, 54). The defendant's observation of the uniformed officer satisfied the requirement that the police announce their presence. *See State v. Anonymous (1984-1)*, 40 Conn. Sup. 20, 31, 480 A.2d 600, 606 (1984) ("Perhaps, in this case, where uniformed officers were at the door when it was partially open, an announcement of the presence of the police was unnecessary"); *Commonwealth v. Goggin*, 412 Mass. 200, 202, 587 N.E.2d 785, 787 (1992) ("Although the defendant on opening the door may have been surprised to

see a group outside, the identity of the police should have been immediately obvious to her from the badges around their necks"); and *State v. Ellis*, 21 Wash. App. 123, 128, 584 P.2d 428, 431 (1978) ("[a] prominently posted uniformed officer is a great aid in establishing the legitimacy of the announced identification, particularly when it comes at late and unusual hours as in the case before us").

Where the occupant closes the door in the face of a uniformed police officer, the police can be virtually certain that the occupant knows why they are there; and further announcement would be a useless gesture. *Lockwood v. State*, 591 P.2d 969 (Alaska 1979); and *State v. Berry*, 174 Wis. 2d 28, 496 N.W.2d 746 (Ct. App. 1993).

Because further announcement prior to entry would have been a useless gesture, the police entry was reasonable under the Fourth Amendment.

II. IF THE POLICE ENTRY INTO THE DEFENDANT'S ROOM WAS UNREASONABLE UNDER THE FOURTH AMENDMENT, SUPPRESSION OF THE EVIDENCE IS NOT THE PROPER REMEDY.[12]

If this Court concludes that the police failed to comply with the Fourth Amendment in entering the defendant's room, suppression of the evidence is not the proper remedy since the police were executing a search warrant issued by a neutral and detached magistrate.

For three primary reasons, application of the exclusionary rule is inappropriate: first, the evidence was seized under the authority of a valid warrant, not by exploitation of an illegality; second, because the warrant was based on information gathered prior to the entry, the source of the valid warrant was independent from an illegal entry; and, third, because the evidence was seized pursuant to a valid warrant, application of the exclusionary rule would put the police in a worse position than if they had complied with the rule of announcement.

Suppression of the evidence is not a proper remedy for a constitutional violation where "the evidence was not

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[12]The Wisconsin Supreme Court did not reach the issue of the application of the exclusionary rule to an entry that is unreasonable for lack of compliance with the rule of announcement because the court affirmed the conviction without having to address the question. The State of Wisconsin briefed the issue in the Wisconsin Supreme Court, however; and Wisconsin raised the issue in this Court in the "Brief in Opposition to Petition for a Writ of Certiorari" at pages i and 11-12. If this Court finds that the entry was unreasonable and in violation of the Fourth Amendment, the question of the applicability of the exclusionary rule should be considered by this Court or by the Wisconsin Supreme Court on remand.

"'come at by exploitation" of . . . the defendant's Fourth Amendment rights . . . .'" *New York v. Harris*, 495 U.S. 14, 19 (1990).

In this case, even if the police entry was unreasonable, the evidence should not be suppressed since the seizure of the evidence was not an exploitation of the entry. The evidence was seized under the authority of the search warrant that had been issued by the neutral and detached magistrate. Because the evidence was seized under the authority of the warrant, the police entry did not taint the seizure of that evidence. The only event that would have prevented the police from seizing the evidence would have been its destruction; and the defendant does not have a constitutional right to destroy the evidence. *Ker v. California*, 374 U.S. at 39, quoting *People v. Maddox*, 46 Cal. 2d 301, 306, 294 P.2d 6, 9 (1956).

In a dissenting opinion in *New York v. Harris*, Justice Marshall explained that the principal purpose of the exclusionary rule is to eliminate incentives for police officers to violate the Fourth Amendment and he noted: "A police officer who violates the Constitution usually does so to obtain evidence that he could not secure lawfully." *Harris*, 495 U.S. at 22 (Marshall, J., dissenting).

In *United States v. Crews*, 445 U.S. 463, 471 (1980), the Court also considered when suppression of evidence is proper and said: "Thus most cases begin with the premise that the challenged evidence is in some sense the product of illegal governmental activity."

Again, under that standard, suppression is not proper in the instant case because the evidence was not the product of illegal governmental activity. The police did not have to act unlawfully to seize the evidence because its seizure was the product of the valid search warrant, not the mode or manner of entry.

In a case where the police searched a residence under the authority of a valid warrant after they had illegally entered the residence, this Court refused to suppress the evidence seized under the authority of the valid warrant. In *Segura v. United States*, 468 U.S. 796 (1984), the police illegally entered the defendant's apartment without a warrant and arrested the occupants. Police remained in the apartment for nearly twenty-four hours while other officers obtained a search warrant that was based on information the police possessed before they entered the apartment. The defendant sought to suppress evidence seized in the execution of the search warrant. The defendant argued that the evidence seized under the warrant should be excluded as "'fruit'" derived from the illegal entry. *Segura*, 468 U.S. at 813.

In rejecting the defendant's argument, the Court said that the legality of the entry was irrelevant where the source of the information on which the warrant was secured was unconnected with the entry and was known to the police before the entry. *Segura*, 468 U.S. at 813-14.

The Court later explained: "Suppression is not justified unless 'the challenged evidence is in some sense the product of illegal governmental activity.' *United States v. Crews*, 445 U.S., at 471." *Segura*, 468 U.S. at 815. The Court said suppression was not appropriate since the illegal entry into the apartment did not contribute in any way to the discovery of the evidence seized under the warrant.

The Court rejected the dissent's argument that had the police not entered the apartment the occupants could have removed or destroyed the evidence before the warrant issued. The majority of the Court refused to extend the exclusionary rule to protect criminal activity such as the destruction of evidence. *Segura*, 468 U.S. at 816.

The Court added: "The essence of the dissent is that there is some 'constitutional right' to destroy evidence. This concept defies both logic and common sense.'" *Segura*, 468 U.S. at 816.

The decision in *Segura* dictates that the exclusionary rule *not* be applied to evidence seized in the execution of the search warrant in this case even if this Court holds that the entry was unreasonable under the Fourth Amendment. As in *Segura*, the warrant was based on information obtained by the police before entering the residence. The warrant and the evidence seized under it were obtained wholly independent from the entry. The entry only prevented the occupants from destroying the drugs; and, as the Court made clear in *Segura*, the occupants did not have a constitutional right to destroy the evidence. Therefore, the exclusionary rule cannot be applied to protect their chance to destroy evidence. As made clear in *Segura*, because the evidence in this case was seized on a warrant independent from the entry, the exclusionary rule cannot be applied to the evidence obtained in the execution of the warrant.

If the exclusionary rule were applied where the police made a no knock entry to execute a valid search warrant, the lesson for the police, in light of *Segura*, would be to make the entry before obtaining the warrant, then get the warrant and return to the premises that are under the protection of the police. Such would be an anomalous result because the police would find it more to their advantage to plan an illegal entry prior to obtaining the warrant.

The exclusionary rule should not be applied when to do so would put the police in a worse position than they would have been if they complied with the constitutional requirements. *Murray v. United States*, 487 U.S. 533, 541 (1988). One reason for the exclusionary rule is to protect against the prosecution being put in a better position than

it would have been if no illegality had transpired. *Nix v. Williams*, 467 U.S. 431, 443 (1984). Under the independent source doctrine, evidence is not suppressed if it would have been discovered wholly independent of any constitutional violation.

> The independent source doctrine teaches us that the interest of society in deterring unlawful police conduct and the public interest in having juries receive all probative evidence of a crime are properly balanced by putting the police in the same, not a *worse*, position than they would have been in if no police error or misconduct had occurred. When the challenged evidence has an independent source, exclusion of such evidence would put the police in a worse position than they would have been in absent any error or violation.

Nix, 467 U.S. at 443 (citations omitted).

In this case, even if the police entered the room illegally, the evidence was discovered and seized by a means wholly independent from the entry because it was discovered and seized in the execution of a valid search warrant. Had the police entered legally, the evidence would have been discovered and seized pursuant to the warrant. If the exclusionary rule were applied in this case, the police would be put in a worse position than if they had complied with the rule of announcement. To avoid putting the police in a worse position than if they complied with the rule, the evidence must be admitted at trial.

In summary, even if this court finds that the police entry in this case was unreasonable under the Fourth Amendment, suppression of the evidence is not the proper remedy because the evidence was seized under the authority of the valid search warrant, not out of exploitation of the entry.

CONCLUSION

For the reasons discussed above, the State of Wisconsin requests this Court to affirm the decision of the Wisconsin Supreme Court.

Respectfully submitted,

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APPENDIX

Wis. Stats. § 961.41(1) (1995-96) A1-5

961.41 Prohibited acts A—penalties. (1) MANUFACTURE, DISTRIBUTION OR DELIVERY. Except as authorized by this chapter, it is unlawful for any person to manufacture, distribute or deliver a controlled substance or controlled substance analog. Any person who violates this subsection with respect to:

(a) Except as provided in par. (d), a controlled substance included in schedule I or II which is a narcotic drug, or a controlled substance analog of a controlled substance included in schedule I or II which is a narcotic drug, may be fined not more than $25,000 or imprisoned for not more than 15 years or both.

(b) Except as provided in pars. (cm) and (e) to (h), any other controlled substance included in schedule I, II or III, or a controlled substance analog of any other controlled substance included in schedule I or II, may be fined not more than $15,000 or imprisoned for not more than 5 years or both.

(cm) Cocaine or cocaine base, or a controlled substance analog of cocaine or cocaine base, is subject to the following penalties if the amount manufactured, distributed or delivered is:

1. Five grams or less, the person shall be fined not more than $500,000 and may be imprisoned for not more than 10 years.

2. More than 5 grams but not more than 15 grams, the person shall be fined not more than $500,000 and shall be imprisoned for not less than one year nor more than 15 years.

3. More than 15 grams but not more than 40 grams, the person shall be fined not more than $500,000 and shall be imprisoned for not less than 3 years nor more than 20 years.

4. More than 40 grams but not more than 100 grams, the person shall be fined not more than $500,000 and shall be imprisoned for not less than 5 years nor more than 30 years.

5. More than 100 grams, the person shall be fined not more than $500,000 and shall be imprisoned for not less than 10 years nor more than 30 years.

(d) Heroin or a controlled substance analog of heroin is subject to the following penalties if the amount manufactured, distributed or delivered is:

1. Three grams or less, the person shall be fined not less than $1,000 nor more than $200,000 and may be imprisoned for not more than 15 years.

2. More than 3 grams but not more than 10 grams, the person shall be fined not less than $1,000 nor more than $250,000 and shall be imprisoned for not less than 6 months nor more than 15 years.

3. More than 10 grams but not more than 50 grams, the person shall be fined not less than $1,000 nor more than $500,000 and shall be imprisoned for not less than one year nor more than 15 years.

4. More than 50 grams but not more than 200 grams, the person shall be fined not less than $1,000 nor more than $500,000 and shall be imprisoned for not less than 3 years nor more than 15 years.

5. More than 200 grams but not more than 400 grams, the person shall be fined not less than $1,000 nor more than $500,000 and shall be imprisoned for not less than 5 years nor more than 15 years.

6. More than 400 grams, the person shall be fined not less than $1,000 nor more than $1,000,000 and shall be

imprisoned for not less than 10 years nor more than 30 years.

(e) Phencyclidine, amphetamine, methamphetamine or methcathinone, or a controlled substance analog of phencyclidine, amphetamine, methamphetamine or methcathinone, is subject to the following penalties if the amount manufactured, distributed or delivered is:

1. Three grams or less, the person shall be fined not less than $1,000 nor more than $200,000 and may be imprisoned for not more than 5 years.

2. More than 3 grams but not more than 10 grams, the person shall be fined not less than $1,000 nor more than $250,000 and shall be imprisoned for not less than 6 months nor more than 5 years.

3. More than 10 grams but not more than 50 grams, the person shall be fined not less than $1,000 nor more than $500,000 and shall be imprisoned for not less than one year nor more than 15 years.

4. More than 50 grams but not more than 200 grams, the person shall be fined not less than $1,000 nor more than $500,000 and shall be imprisoned for not less than 3 years nor more than 15 years.

5. More than 200 grams but not more than 400 grams, the person shall be fined not less than $1,000 nor more than $500,000 and shall be imprisoned for not less than 5 years nor more than 15 years.

6. More than 400 grams, the person shall be fined not less than $1,000 nor more than $1,000,000 and shall be imprisoned for not less than 10 years nor more than 30 years.

(f) Lysergic acid diethylamide or a controlled substance analog of lysergic acid diethylamide is subject to the

following penalties if the amount manufactured, distributed or delivered is:

1. One gram or less, the person shall be fined not less than $1,000 nor more than $200,000 and may be imprisoned for not more than 5 years.

2. More than one gram but not more than 5 grams, the person shall be fined not less than $1,000 nor more than $250,000 and shall be imprisoned for not less than 6 months nor more than 5 years.

3. More than 5 grams, the person shall be fined not less than $1,000 nor more than $500,000 and shall be imprisoned for not less than one year nor more than 15 years.

(g) Psilocin or psilocybin, or a controlled substance analog of psilocin or psilocybin, is subject to the following penalties if the amount manufactured, distributed or delivered is:

1. One hundred grams or less, the person shall be fined not less than $1,000 nor more than $200,000 and may be imprisoned for not more than 5 years.

2. More than 100 grams but not more than 500 grams, the person shall be fined not less than $1,000 nor more than $250,000 and shall be imprisoned for not less than 6 months nor more than 5 years.

3. More than 500 grams, the person shall be fined not less than $1,000 nor more than $500,000 and shall be imprisoned for not less than one year nor more than 15 years.

(h) Tetrahydrocannabinols, included under s. 961.14 (4) (t), or a controlled substance analog of tetrahydrocannabinols, is subject to the following penalties if the amount manufactured, distributed or delivered is:

1. Five hundred grams or less, or 10 or fewer plants containing tetrahydrocannabinols, the person shall be fined not less than $500 nor more than $25,000 and may be imprisoned for not more than 3 years.

2. More than 500 grams but not more than 2,500 grams, or more than 10 plants containing tetrahydrocannabinols but not more than 50 plants containing tetrahydrocannabinols, the person shall be fined not less than $1,000 nor more than $50,000 and shall be imprisoned for not less than 3 months nor more than 5 years.

3. More than 2,500 grams, or more than 50 plants containing tetrahydrocannabinols, the person shall be fined not less than $1,000 nor more than $100,000 and shall be imprisoned for not less than one year nor more than 10 years.

(i) A substance included in schedule IV, may be fined not more than $10,000 or imprisoned for not more than 3 years or both.

(j) A substance included in schedule V, may be fined not more than $5,000 or imprisoned for not more than one year or both.